

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 2065 OF 2014

Abdul Jalil Sheikh and others
..... Petitioners

-Versus-

Sheikh Abdul Wahab and others
..... Opposite Parties

Mr. Tobarak Hossain, Advocate
..... For the Petitioners

Mr. Kawser Ahmed Halim, Advocate
..... For the Opposite Party No. 1

Heard on 02.11. 2016, 15.11.2016 and
Judgment on 29.11.2016

At the instance of the present respondent-petitioners, Abdul Jalil Sheikh and others, this Rule has been issued calling upon the opposite parties to show cause as to why the impugned judgment and decree dated 21.01.2014, passed by the learned District Judge, Bagerhat, in Title Appeal No. 41 of 2012, affirming those dated 31.01.2012, passed by the learned Senior Assistant Judge, Morelgonj, Bagerhat, in Title Suit No. 198 of 2009 should not be set aside.

The relevant facts for disposal of the Rule, inter alia, are that the present opposite party No.1 as the sole plaintiff filed the Title Suit No. 198 of 2009 in the court of learned Senior Assistant Judge, Morelgonj, Bagerhat against the present defendant-Petitioner and proforma opposite

party Nos. 2 to 5 as the defendants for declaration that the order passed by the Registrar of the Samabaya Directorate, Dhaka is an illegal, void and no legal effect and not binding upon him and also for a sale certificate of the mortgage land ineffective and non-forcible.

The case of the plaintiff, in short, is that, the schedule land belonged to one Mofiz Uddin Hawlader who took loan of Tk. 2, 000/- from the Khulna Samabaya Mortgage Land Bank by mortgaging 2.00 acres of land on 19.06.1982. The said mortgagor was to pay the loan amount and the interest thereof within 10 years. The Mofiz Uddin Hawlader during his life time and his heirs after his death paid a portion of the said loan but total outstanding as to the date of filing of the suit was Tk. 28.816/- remained to be unpaid despite several requests has not paid and the loanee became a defaulter. Under the provision of Samabaya Samity Ain, 2001 and Samabaya Samity Bidimala, 2008 an officer was appointed for a sale proceeding by auction and the concerned parties was notified about the process of auction for sale of the land measuring 2.00 acres. The said property was sold on auction to the present plaintiff-opposite party No.1 Sheikh Abdul Wahab and subsequently execute a sale certificate in favour of plaintiff opposite party by a registered deed NO. 01/2009 dated 02. 08. 2009. Subsequently present plaintiff opposite party made an application for handing over the possession of the land but the present defendant-petitioner Nos. 1 to 3 filed a petition before the Joint Registrar, Khulna under Rule 119(4) of the Samabaya Samity Bidhimala, 2004 without depositing the loan money to the bank claiming them as the purchaser of the land from the

original owner through different registered deeds and the Joint registrar of Khulna filed an appeal against the order for sale on auction, therefore, the suit was filed by the auction purchaser as the plaintiff of the suit.

The suit has been contested by the present defendant-petitioner Nos. 1 to 3 and 9 and also by the proforma-defendant Opposite Party NO. 5, the president Bagerhat District Samabaya Land Motgaga Bank Ltd. by filing two separate written statements.

The defendant-petitioner Nos. 1 to 3 and 7 to 9 stated that one Mofizuddin was the owner of 3.07 acres of land. He mortgaged 2.00 acres out of the above measurement of land to the Samabaya Bank Khulna and subsequently he transferred his land by executing sale deed from the date of 30.03.1989 to 11.02.2007. Accordingly the transferee become owner and the possession handed to them. The transferee came to know about the loan and wanted to pay of the loan money but the bank refused to accept the due amount. The bank officer lawfully undertook the proceeding when the present defendant-petitioner were prepared to repay the loan amount and they have taken step for an appeal under section 119(4) of the Bidhimala, 2008. The Joint Registrar of the Samabaya Directorate allowed the appeal by cancelling auction sale certificate.

The present defendant Proforma Opposite Party also filed a separate written statement being the President of the Bagerhat District Samabaya Land Mortgaged Bank Ltd., contending that under the provision of law auction proceeding was completed and the land was sold on auction and such auction sale cannot be challenged by any third person on behalf of the

mortgagor, the predecessor of the present defendant-petitioner. However he sought disposal of the suit.

After hearing the parties and perusing the evidence on record the learned Senior Assistant Judge, Morelgonj, Bagerhat decreed the suit by the judgment and decree dated 31.01.2012. Being aggrieved the present defendant-petitioners as the appellants preferred the Title Appeal No. 41 of 2012 in the court of learned District Judge, Bagerhat who after hearing the parties dismissed the appeal by his judgment and decree dated 21.01.2014. This revisional application has been filed challenging the said impugned judgment passed by the learned appellate court below and the Rule was issued thereupon.

Mr. Tobarak Hossain, the learned Advocate appearing along with the learned Advocate Urmee Rahman, the learned Advocate appearing for the petitioner submits that the courts below misread the evidence on record by not considering the fact and the auction sale procedure described in the Samabay Ain 2001 was not properly followed in this case and therefore the auction sale has no legality in the eye of law and as such cancellation of the auction sale was rightly done and, as such, the impugned judgment and decree is liable to be set aside.

The learned Advocate further submits that both the courts below have arrived at a finding that an auction purchase with regard to a mortgage land is not liable to be challenged under Rule 119(4) of the Samabay Bidhimala, 2014, hence is not maintainable and the Joint Registrar has not

no jurisdiction for disposal of the same, that Rule (4) of Samabay Bidhimala runs as follows:-

“ বিধি-১১৯। (৪) নিবন্ধন বাতিলসহ যে কোন নির্বাহী আ-দ-শর বিরুদ্ধে সংক্ষুব্ধ ব্যক্তি আ-দ-শদানকারী কর্তৃপক্ষের পরবর্তী উদ্ধতন কর্তৃপক্ষের নিকট আ-দ-শ প্রদান-র ১(এক) মা-সর ম-ধ্য আপীল করি-ত পারি-বন।”

Thus both the courts below misinterpreted this Rule by not considering that an executive order includes issuance of an auction sale certificate and the Joint Registrar rightly disposed of the said appeal as being within his jurisdiction and therefore the impugned judgment is liable to be set aside for being had in law.

The Rule has been opposed by the plaintiff-opposite party No. 1, by filing the counter affidavit contending, inter alia, that before the auction proceeding the proforma opposite party No. 4 who was the defendant No. 6 in the original suit issued the required notice dated 31.07.2008 upon the heirs of the successors of the original loanee Mofizuddin under Rule 141(3) of the Samabaya Samity Bidhimala for making repayment of the arrear loan within 30 days from the date of receiving notice but after receiving the notice borrower or the successors of the original borrower Mofizuddin (deceased) did not pay the loan or did not respond to said notice. It is further contended that after proceeding of the auction sale another notice was served upon the legal heirs of said Mofizuddin as to information of the auction sale on 12.10.2008.

Mr. Kawser Ahmed Halim, the learned Advocate appearing for the opposite party No. 1 submits that District Samabaya Officer issued a sale

certificate in favour of Abdul Wahab according to Rule 119(4) of Samabaya Bidimala 2004 from his office vide Memo No. 194(4) dated 02.07.2009 and later on it was registered being No. 01/09 in Morelgonj sub-registry office. The legal heirs of Moizuddin withdrawn excess money of auction sale after making payment of the arrear loan from Samabaya Bank and according to law all formalities was completed under 67(b) of Samabaya Samity Ain 2001.

The learned Advocate further submits that Appellant No. 1 to 3 filed a suit being NO. 08 of 2009 cancellation of Deed before joint Registrar Divisional Samabaye Sanchay, Khulna and got an illegal order on 26.10.2009. The statement described in the application is false, concocted and not binding upon the concerned Samabaya Bank and also to the process of auction sale.

Considering the above submissions made by the learned Advocate appearing for the respective parties and also considering the revisional application filed under section 115(1) C.P.C. along with the Annexures therein, in particular, the impugned judgment and decree and also considering the lower court record, it appears that original owner of the suit Mofizuddin appertaining to the land described below-

“ জেলা - বা-গরহাট, থানা- মোড়লগঞ্জ, অন্তর্গত ১১৮ নং চালিতাবুনিয়া মৌজায় এস, এ, ৬০২ নং খতিয়া-ন ১৩০২ নং দা-গ ১.৮৭ একর, ২৮২৮ নং দা-গ ৬২ একর মোট ২.৪৯ একর, ঐ মৌজায় এস, এ, ৬৪৩ নং খতিয়া-ন ১১৫৪ নং দা-গ. ৫৩ একর, ২৭৮৩ নং দা-গ ১.৬৯ ২৭৮২ রং দা-গ. ২৬ ২৭৮৯ দা-গ. ৫৬ একর ও ২৭৮৪ নং দা-গ. ৬১ একর মোট ৩৬৫ একর উক্ত ২টি জমার ম-ধ্য ম-ফজ উদ্দিনের নামীয় অংশের মধ্যস্থ ২.০০ একর। যাহা বা-গরহাট সমবায় দপ্তর-র ০৫/০৮ রং সেল কে-স নিলাম হইয়া-ছ এবং ০২/৭/০৯ তারিখ জেলা সমবায় কর্মকর্তা বা-গরহাট কর্তৃক ১১৯৪ নং বন্ধকী জমি বিক্রয় সনদ বা সেল সনদ বা সেল সার্টিফিকেট দেওয়া

হইয়া-ছ। যাহা মোড়লগঞ্জ সাব রেজিস্ট্রি অফিস ০১/০৯ নং বয়নামা রেজিঃ হইয়া-ছ।
উক্ত দলিল রেজিষ্ট্রি হইয়া-ছ। উক্ত দলিল ভুক্ত ২.০০ একর নালিশী জমি মাত্র। ”

The admitted position of both the parties is that the owner of the suit land was Mofizuddin. In fact, the said Mofizuddin Howlader was owner of total land measuring 3.03 acres he mortgaged 2.00 acres of land with the Khulna Samabaya Land Mortgage Bank Ltd., Khulna by a registered mortgage deed vide Loan Case No 56 of 82-83 dated 19.06.1982 for getting a loan of Tk. 7, 000/- with the condition to repay the said amount within 10 years along with the interest thereof. It appears that the bank had claimed Tk. 28, 816/- as on 31.07. 2008 which is about the 26 years after the loan was issued. Accordingly it is clear that the predecessor of the present defendant-petitioner was defaulter as per the provision of Samabaya Samity Ain, 2004 and the Samabaya Bidimala, 2004.

I have to decide that after being a defaulter whether the land could be sold by the lender bank against the defaulter within the provision of law. In this regard I have carefully examined the provision laid down in both the Ain, 2001 and Bidimala, 2004 to undertake an auction proceeding for sale of the land in order to realize the loan amount by selling the property on auction. In particular, Rules 138 of Rules 160 of Samabaya Samity Bidimala, 2004 described the proceeding to be undertaken by bank for selling any property of a defaulter. In the instant case, the bank has taken the required steps lawfully as per the provision of law. In particular, under the provision of Rules 138 an officer was appointed for selling the property on auction by the officer of the bank on 28.05. 2009 as the legal heirs of the

original mortgagor Mofizuddin preferred an appeal to the Joint Registrar under Rule 11 (4) of the Rules 2004 for cancelling the auction sale certificate issued by the order dated 28.05.2009. The said Joint Registrar upon hearing the parties allowed the appeal and thereby cancelling sale certificate issued by the appointed sale officer. Challenging the said order of cancellation of the sale certificate the present opposite party No. 1 as the plaintiff filed the Title Suit No. 198 of 2009 for a declaration of the cancellation order passed by the Joint Registrar illegal and the learned Trial Court decreed the suit by the judgment and order dated 31.01.2012. The appeal preferred by the present petitioner was also dismissed.

From the records, it appears that Mofizuddin sold some of the property to the present petitioners and after his death his legal heirs also transferred some properties total measuring 2.00 acres by the deeds from the year of 1989 to the year of 2007 through 6(Six) separate deeds exhibits (Kha to Chha) knowingly well that the property had encumbrance of mortgage, despite that the facts, they sold the some property to the present defendant-petitioners who were obliged to make an inquiry before purchasing the suit land from the vendors as per requirement of the Registration Act. From the above factual legal aspect it is certain that the present –petitioners must have known encumbrances upon the land but still went ahead to purchase the land which was sold on auction to the present opposite party much earlier who had acquired entitlement upon the land described above as per the existence law of the country.

The learned Advocate appearing for the petitioners drawn my attention to sections 63, 64(Kha) of the Act, 2001 as well as Rule 119(4) of the Rules, 2004. I have examined the provisions mentioned by the learned Advocate for the petitioners, in particular, section 64 which requires to serve a notice upon the interested persons before selling of any mortgaged property. Rule 64 is hereby produced below for convenience:-

“ ধারা -৬৪। স্বার্থসংশ্লিষ্ট ব্যক্তিদের প্রতি নোটিশ প্রদান।- ধারা ৬২ তে অর্পিত ক্ষমতাবলি জমি বন্ধকী ব্যাংক, বা জাতীয় সমবায় সমিতি, উহার প্রাপ্য ব-কয়া অর্থ আদায়ের উদ্দেশ্যে নিম্নবর্ণিত ব্যক্তির প্রতি নোটিশ প্রদান করি-ব, যথাঃ-

(ক) বন্ধক দাতা;

(খ) এমন কোন ব্যক্তি যাহার বন্ধকী সম্পত্তিতে স্বার্থ আছে অথবা উহা-ত কোন দাবী আছে অথবা উক্ত সম্পত্তি উদ্ধার-র ব্যপা-র স্বত্ব আছে এবং যিনি উক্ত অথবা সমিতি-ক অনুরূপ স্বার্থ অথবা দাবী সম্পা-র্ক পূ-র্ব লিখিতভা-ব অবহিত করিয়া-ছেন;

(গ) উক্ত অর্থ অথবা উহার অংশবি-শেষ প্রদা-নর জন্য কোন জামিনদার ; এবং

(ঘ) বন্ধকদাতার কোন পাওনাদার, যিনি বন্ধকী সম্পত্তি বিক্রয়ের জন্য একটি ডিক্রি লাঞ্ছিত করিয়া-ছেন।”

“119(4) নিবন্ধন বাতিলসহ যে -কোন নির্বাহী আ-দ-শর বিরুদ্ধে সংক্ষুব্ধ ব্যক্তি আ-দ-শদানকারী কর্তৃপ-ক্ষের পরবর্তী উর্ধ্বতন কর্তৃপ-ক্ষের নিকট আ-দ-শ প্রদা-নর ১ (এক) মা-সর ম-ধ্য আপীল করি-ত পারি-বন।”

The above provision contains that any executive order can be challenged by aggrieved party and can file an appeal to the higher authority within a month. I also consider that the concurrent judgments passed by the learned courts below after considering all evidences produced by the parties. In this regard in my view the above Rule 119(4) is available only for any executive order but here I am dealing with a matter which is a procedural matter as to the auction sale to a mortgaged property. It is not only an executive order but it is an order as per the requirement of the provision of law, therefore, both the courts below rightly found that

cancellation of auction sale by the Joint Registrar, Khulna is not tenable under the provision of law.

Now I am inclined to examine the judgment and decree passed by the learned trial court who decreed the suit in favour of the present opposite party No. 1, the auction purchaser by decreeing the suit on the basis of the following findings:-

“ উপরোক্ত আ-লাচনার আ-লা-ক অত্রাদালত সিদ্ধান্ত প্রদান কর-ছ যে, বাদী পক্ষ ও প্রতিদ্বন্দ ১-৩/৮-১১ নং বিবাদী প-ক্ষর বন্দকী জমি নীলাম ক্রয় বা উক্ত নিলাম বিক্রয় বাতিল সংক্রান্ত ইস্যুটি নিষ্পত্তির জন্য সমবায় সমিতি বিধি মালার ২০০৪ এর বিধি ১১৯(৪) এর বিধান অনুযায়ী আপীল গ্রহন ও নিষ্পত্তি করাটা আইনগত এখতিয়ার বহিভূত, বিধায় ৪ নং বিবাদী যুগ্ম নিবন্ধক কর্তৃক ৮/২০০৯ নং আপীল প্রদত্ত ২৬/১০/০৯ ইং তারি-খর আ-দশ / এডওয়ার্ড যে, ২৮/১০/০৯ ইং তারি-খ স্বাক্ষরিত) হস্ত-ক্ষপ-যোগ্য এবং যারপরনায় বাতিল (void abinitio) ব-ল গন্য হ-ব এবং বিক্রয় সনদ আইনগত ভা-ব বাতিল না হওয়ায় উহা বলবত ও বহাল থাক-ব।

-য-হতু ৪ নং বিবাদী কর্তৃক ৮/০৯ নং আপীল মামলায় উপস্থাপিত বি-রাধটির বিচার আইনগত কর্তৃত্ব । একতিয়ার বহিভূত হ-ছে। কা-জই ৮/০৯ নং আপীল মোকাদ্দমা আ-দশ দানকারী কর্তৃপক্ষযুগ্ম নিবন্ধক সমবায় দ;গুর কর্তৃক আপী-ল উল্লিখিত পর্য-বক্ষণ সমুহ সঠিক ভা-ব গৃহীত হ-য়-ছ কি হয়নি এ বিষ-য় প্র-য়োজনীয় ম-র্ম আদালত ম-ন ক-র।

উপরোক্ত আ-লাচনা, সংশ্লিষ্ট আই-নর বিশদ পর্যা-লাচনা ক্রমে অত্রাদালত সিদ্ধান্ত প্রদান কর-ছ যে, ৪নং বিবাদী কর্তৃক সমবায় সমিতি বিধি মালা- ২০০৪ এর ১১৯(৪) ধারাম-ত নিষ্পত্তিকৃত আপীল ৮/০৯৮ নং মোকদ্দমাটিতে ২৬/১০/০৯ তারি-খর প্রদত্ত আ-দশ ২৮/১০/০৯ তারি-খ স্বাক্ষরিত বা এওয়ার্ডগত আইনগত এখতিয়ার বহিভূত ভা-ব নিষ্পত্তি করা হইয়া-ছ বা বেআইনী এবং বাতিল (void abinitio) গন্য হ-ব । মোকদ্দমাটি অত্রাকারে দা-য়র সঠিক আ-ছ ভিধায় বাদী প্রতিকার-প-ত হকদার।

The learned appellate court below after considering all the evidence and witness statements made in this case came to a conclusion concurrently to dismiss the appeal preferred by the present petitioners on the basis of the following findings:-

“ In consideration of facts and evidence on record as well as the entire process and procedure in respect of mortgage and sale I find no illegality in the auction procedure and the same

was not liable to be challenged u/s. 119(4) of the concerned rules and as such the learned court below rightly found the original case maintainable and also passed the impugned judgment and decree in consideration of all the relevant laws related therewith with. So, I find no illegality in passing the judgment and decree and as such the same is not liable to be interfered with.”

After examining all the above judgments and decrees I consider that this is not a proper case for interference from this court, therefore, this Rule does not merit any further consideration.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

Let the order of stay granted at the time of issuance of the Rule upon operation of the impugned judgment and decree is hereby recalled and vacated.

The office is directed to communicate the judgment and order to the court concerned and send down the lower court records immediately.